



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG - 9 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9697
(THIRD REVISION)

EXPIRATION DATE: October 31, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: E. I. DuPont de Nemours & Company, Incorporated
Wilmington, Delaware
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time transportation in commerce of a DOT Specification 120A500W tank car, containing a Division 6.1 material, poisonous by inhalation. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.102(c)(3) Special Provisions B9 and B74; 179.103-5(b)(1).
5. BASIS. This emergency exemption is based on E.I. DuPont de Nemours & Company, Incorporated's application of November 24, 1992 submitted in accordance with 49 CFR Section 107.105 and supplemental letters dated January 19, 1994 and July 24, 1995.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Waste poisonous liquids, corrosive, n.o.s. (Antimony pentachloride)	6.1	UN 2927	I

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 120A500W tank car, bearing owner's reporting mark DUPX8363.
 - b. MARKING - Tank cars operating under the terms of this exemption must be marked "DOT-E 9697" in four inch letters and numerals on a contrasting background above the DOT specification number.

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8. SPECIAL PROVISIONS. Shipment of the tank car under the terms of this exemption is authorized from Montague, MI to Deer Park, TX.
9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident, such as derailment or exterior tank car damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.:
- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
 - Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA